

Court No. - 21

Case :- WRIT - C No. - 5318 of 2023

Petitioner :- Harvir Singh Chauhan

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Pradeep Kumar Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

The petitioner has challenged the recovery citation dated 24.9.2022 issued by respondent No. 3 for recovery of electricity dues in a case of theft of electricity.

Learned counsel appearing on behalf of Electricity Department states that the impugned recovery has been withdrawn and that fresh order will be passed after notice to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order, strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

Order Date :- 15.2.2023

Sumaira

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)